

Data Processing Agreement

DATA PROCESSING AGREEMENT

Agreement Number: CTR-2024-002

Date: 15 June 2024

Linked to: CTR-2024-001 (Enterprise Subscription Agreement)

BETWEEN:

DataFlow Solutions Ltd (Data Processor), registered at 42 Silicon Dock, Dublin 2, Ireland

AND:

Colm Moynihan, on behalf of Snowflake EMEA (Data Controller), registered at One Burlington Plaza, Dublin 4, Ireland

1. PURPOSE

This Data Processing Agreement (DPA) supplements the Enterprise Subscription Agreement (CTR-2024-001) and sets out the terms under which the Data Processor shall process personal data on behalf of the Data Controller.

2. DEFINITIONS

Personal Data means any information relating to an identified or identifiable natural person.

Processing means any operation performed on personal data, including collection, storage, alteration, retrieval, disclosure, erasure, or destruction.

Sub-processor means any third party appointed by the Data Processor to process personal data.

3. SCOPE OF PROCESSING

The Data Processor shall process the following categories of personal data:

- Customer contact information (names, email addresses, phone numbers)
- Transaction records and account identifiers
- Usage analytics and behavioural data
- IP addresses and device identifiers

Data subjects include: Customer employees, clients, and business contacts.

4. OBLIGATIONS OF THE DATA PROCESSOR

The Data Processor shall:

- Process personal data only on documented instructions from the Data Controller
- Ensure that persons authorised to process personal data have committed to confidentiality
- Implement appropriate technical and organisational security measures including:
 - Encryption of data at rest (AES-256) and in transit (TLS 1.3)
 - Multi-factor authentication for all system access
 - Regular penetration testing (quarterly)
 - SOC 2 Type II compliance
 - ISO 27001 certification
- Not engage another processor without prior written authorisation
- Assist the Data Controller in responding to data subject access requests within 72 hours
- Delete or return all personal data upon termination of services

5. SUB-PROCESSORS

Current approved sub-processors:

- Amazon Web Services (EU-West-1, Ireland) - Infrastructure hosting
- Snowflake Inc. (EU, Frankfurt) - Data warehousing
- Datadog (EU) - System monitoring

The Data Processor shall notify the Data Controller of any intended changes to sub-processors with at least 30 days notice.

6. DATA BREACH NOTIFICATION

The Data Processor shall notify the Data Controller without undue delay (and in any event within 24 hours) of becoming aware of a personal data breach. Notification shall include:

- Nature of the breach
- Categories and approximate number of data subjects affected
- Likely consequences
- Measures taken to address the breach

7. DATA TRANSFERS

No personal data shall be transferred outside the European Economic Area without the prior written consent of the Data Controller and appropriate safeguards (Standard Contractual Clauses or adequacy decision).

8. AUDIT RIGHTS

The Data Controller shall have the right to audit the Data Processor compliance with this DPA with 14 days written notice, no more than once per calendar year.

9. TERM

This DPA shall remain in effect for the duration of the Enterprise Subscription Agreement and for 30 days thereafter to allow for data

return/deletion.

SIGNED:

Colm Moynihan (Data Controller) - Date: 15 June 2024

Michael O Sullivan (Data Processor - CEO) - Date: 15 June 2024